

“attainder or *ex post facto* law shall be passed.”—
 Clause 7. “No title of nobility shall be granted by
 “the United States: And no person holding any
 “office of profit or trust under them, shall, without
 “the consent of the congress, accept of any present,
 “emolument, office or title, of any kind whatever,
 “from any king, prince or foreign state.”—Article
 III. section 2. clause 3. “The trial of all crimes,
 “except in cases of impeachment, shall be by jury;
 “and such trial shall be held in the state where the
 “said crimes shall have been committed; but when
 “not committed within any state, the trial shall be
 “at such place or places as the congress may by law
 “have directed.”—Section 3, of the same article,
 “Treason against the United States shall consist only
 “in levying war against them, or in adhering to
 “their enemies, giving them aid and comfort. No
 “person shall be convicted of treason unless on the
 “testimony of two witnesses to the same overt act,
 “or on confession in open court.”—And clause 3, of
 the same section. “The congress shall have power to
 “declare the punishment of treason, but no attainder
 “of treason shall work corruption of blood, or for-
 “feiture, except during the life of the person
 “attainted.”

It may well be a question whether these are not
 upon the whole, of equal importance with any which
 are to be found in the constitution of this state. The
 establishment of the writ of *habeas corpus*, the pro-
 hibition of *ex post facto* laws, and of TITLES OF
 NOBILITY, to which we have no corresponding provi-
 sions in our constitution, are perhaps greater securities
 to liberty and republicanism than any it contains.
 The creation of crimes after the commission of the
 fact, or in other words, the subjecting of men to pu-
 nishment for things which, when they were done,
 were breaches of no law, and the practice of arbitrary
 imprisonments have been in all ages the favourite
 and most formidable instruments of tyranny. The
 observations